IN THE NATIONAL COMPANY LAW TRIBUNAL
JAIPUR BENCH

Coram: SHRI AJAY KUMAR VATSAVAYI,
HON'BLE JUDICIAL MEMBER
SHRI RAGHU NAYYAR,
HON'BLE TECHNICAL MEMBER

CP (CAA) 01/230-232/JPR/2021
CA(CAA)- 110/230-232/JPR/2020

UNDER SECTION 230-232 OF COMPANIES ACT, 2013

In the matter of:

ISAGRO (Asia) Agrochemicals Private Limited
(CIN: U24299MH2001PTC133128)
Kalpataru Square, Unit No. 32, 3rd Floor Kondivita,
Land R K Mandir Rd, Off Andheri Kurla Rd,
Andheri East, Mumbai – 400059, Maharashtra

...Transferor Company

WITH

PI Industries Limited
(CIN: L24211RJ1946PLC000469)
Udaisagar Road, Udaipur,
Rajasthan – 313001

...Transferee Company/ Petitioner

For Petitioner (s) : Prakul Khurana, Adv.

Order Pronounced on: 23.03.2021

ORDER

Per : Shri Raghu Nayyar, Technical Member

1. This Company Petition, filed by the Petitioner Company, namely PI Industries Limited, is coming before this Tribunal for fixing the date of

hearing of the main Company Petition as well as for directions in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to the date of hearing of the Petition and calling for objections, if any, to the Scheme of Arrangement ('Scheme') contemplated between ISAGRO Agrochemicals Pvt. Ltd. ('Transferor Company'), PI Industries Limited ('Transferee Company' / 'Petitioner Company') and their respective shareholders. It is submitted that jurisdiction of Transferor Company lies with National Company Law Tribunal, Mumbai Bench.

2. From the records, it is seen that the first motion application seeking directions for dispensing with or holding or any other instructions regarding the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Petitioner Company, as may be applicable / directed, was filed before this Tribunal vide CA (CAA) 110/230-232/JPR/2020 and based on such an application moved under Section 230 of the Companies Act, 2013, an order was passed by this Tribunal on 18.12.2020, wherein the meetings of the Equity Shareholders was directed to be held on 06.02.2021 and meeting of Secured Creditors was dispensed with. In relation to Unsecured Creditors, it was directed to give notices to all the unsecured creditors with an outstanding of more than or equal to Rs. 10,00,000/- with a direction that they may submit their representations, if any, to the Tribunal

within 30 days and copy of such representations shall simultaneously be served upon the Applicant Company.

3. Subsequent to the said order, the Chairperson's report on the meeting of equity shareholders vide Diary No. 409/2021 dated 10.02.2021 was filed, which is taken on record. This Petition of second motion was filed vide Diary No. 449/2021 dated 16.02.2021, which is within seven days as prescribed under law.

4. The Petitioner Company has filed affidavit vide Diary No. 266/2021 dated 27.01.2021, through their authorized signatory, wherein it has been stated that neither the Transferor nor the Transferee Company crosses the threshold limit of assets/turnover as specified under Section 5 of the Competition Act, 2002, read with relevant notifications; therefore, it is not required to send notice, inviting representations/objections, in respect of the Scheme to the Competition commission of India.

5. Now this Petition is coming up for fixing a date of hearing as well as for other consequential directions in terms of the provisions of Section 230-232 of the Companies Act, 2013 read with attendant Rules of the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016 brought into effect on and from 15.12.2019 and it is now hereby ordered as follows: -

   (i) The date of hearing of the Petition filed by the Petitioner for the approval of the Scheme is fixed on 29.04.2021.

(ii) Notice of the hearing shall be advertised in two Newspapers, namely, Dainik Bhaskar, Udaipur Edition and Economic Times (All India Edition) not less than ten days before the aforesaid date fixed for hearing.

(iii) In addition to above public notices, the Petitioner Company shall serve the notice of the Petition on the following Authorities, namely, Central Government, Jurisdictional Income Tax Authority under which the Petitioner Company is assessed indicating clearly the PAN No.; Registrar of Companies, Jaipur; Securities and Exchange Board of India; Reserve Bank of India; National Stock Exchange of India Ltd.; BSE Ltd.; as well as other Sectoral Regulators, which may govern the working of the Company in the Scheme, at least thirty days before the date fixed for hearing of the above Petition.

(iv) Further, notices shall also be served to the Objector(s) or to the representative(s) as contemplated under Sub-section (4) of Section 230 of the Companies Act who may have made representations and who have desired to be heard directly or through their representatives, along with a copy of the Petition and the extracts filed therewith, at-least fifteen days before the date fixed for hearing.

(v) The Petitioner shall, at-least seven days before the date of hearing of the Petition, file an affidavit of service in relation to said publication

effected as well as service of notice on the authorities mentioned above including the Sectoral Regulator(s) as well as to Objectors, if any,

(vi) Objections, if any, to the Scheme, contemplated by the Authorities to whom notice has been given, may be filed on or before the date of hearing fixed herein, failing which it may be considered by this Tribunal that there is no objection on the part of the Authorities to the approval of the Scheme, by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and Regulations/Rules framed thereunder.

(vii) The Petitioner Company shall comply with proviso to Sub-Section (7) of Section 230 as may be applicable under the circumstances on or before the date fixed for hearing by filing a certificate of the Companies' Auditor.

(viii) The next date of hearing is fixed on 29.04.2021 for consideration of the approval of the Scheme of Arrangement as contemplated between the Companies and their shareholders.

Sd-

(Raghu Nayyar)
Member (Technical)

Sd—

(Ajay Kumar Vatsavayi)
Member (Judicial)

Mansi J.